

Case Number: NAIH-1012-12/2023.

Subject: Decision in an administrative procedure initiated upon request

DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) [...], [...], and [...]

applicants (hereinafter collectively: Applicants) submitted a request regarding the failure to provide information about the circumstances of the creation of photographic and video recordings made about the Applicants in the area of [...] ([...]; hereinafter: Respondent1) in the administrative data protection procedure initiated against Respondent2, in which the Authority granted party status to [...] (headquarters: [...], hereinafter: Respondent2) and [...] (headquarters: [...], hereinafter: Respondent3), and makes the following decisions:

1. The Authority grants the Applicants' request and establishes that the Respondents violated Article 12(1) of Regulation (EU) 2016/679 of the European Parliament and of the Council (hereinafter: GDPR), concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data, as well as the repeal of Directive 95/46/EC, when they did not provide easily accessible and transparent information about the data processing carried out through the operation of the camera system.
2. The Authority establishes ex officio that the Respondents violated Article 6(1) of the GDPR, as they unlawfully processed the personal data of the data subjects on the basis of consent.
3. The Authority, based on Article 58(2)(d) of the GDPR, orders the Respondents ex officio to amend their information practices related to camera data processing in such a way that they fully comply with the provisions of Article 12(1) and Article 13 of the GDPR within 30 days from the date this decision becomes final.
4. The Authority ex officio finds the Respondents liable for the violations established in points 1-3 based on Article 58(2)(b) of the GDPR.
5. The Authority rejects the Applicants' request for the establishment of a violation of their right of access.

No procedural costs were incurred in the procedure.

The measure prescribed in point 3 of this decision must be taken by the Respondent within 30 days from the date this decision becomes final – from its delivery – and the Respondent must promptly provide evidence of its implementation to the Authority, along with supporting documents.

There is no administrative remedy against this decision and ruling, but it can be challenged in an administrative lawsuit with a petition addressed to the Metropolitan Court within 30 days from the communication.¹ The petition must be submitted electronically to the Authority, which will forward it along with the case documents.

¹ The form for initiating administrative litigation is called NAIH_K01. The form can be filled out using the general form filling program (ÁNYK program). The form is accessible and can be downloaded from the Authority's website: <https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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is forwarded to the court. The request for a hearing must be indicated in the statement of claim. In the case against the ruling, the court will proceed in a simplified manner, outside of a hearing. For those not benefiting from full personal exemption from fees, the administrative court fee is HUF 30,000, and the case is subject to the payment of the court fee. Legal representation is mandatory in proceedings before the Metropolitan Court.

JUSTIFICATION

I. Background of the case

(1)

The taxi stand established on the premises of [...] (hereinafter: the Airport) qualifies as a special taxi stand, the operator of which is the Applicant2 according to the cooperation agreement concluded with [...].

(2)

The special taxi stand can only be used and occupied with the operator's consent. The contracted partner of Applicant2 is [...]. Based on the documents available to the Authority, Applicant2 did not grant consent to any other taxi service provider.

(3)

According to the relevant legislation, taxis that do not qualify as official service providers may only stay at the taxi stand with a passenger or based on a prior order. Taxi drivers, or persons authorized by them or acting on their behalf, may not engage in any other commercial (business acquisition) activities besides picking up passengers who have placed a prior order or dropping off passengers transported to the airport, meaning that their services cannot be utilized through hailing, boarding, or verbal agreements.

(4)

The operator is entitled and obliged to monitor compliance with the regulations regarding the use of the taxi stand and is required to inform [...] about any violations and the measures taken.

II. Procedure, facts

(5)

The Applicants submitted a request to the Authority to initiate a data protection authority procedure, stating that employees of Applicant1, who perform property protection tasks on the premises of the Airport, continuously take recordings using cameras and other image recording devices, and they do not inform the Applicants in any form about the use and storage of these recordings.

(6)

According to the request, the Applicants did not consent to the creation, storage, and use of the recordings, and in several instances, they requested the creator of the recordings to inform them about the circumstances of the creation and handling of the recordings; however, they received "not a single response" from Applicant1.

(7)

In their request, the Applicants asked the Authority to oblige Applicant1 to restore lawful conditions if its behavior violates Articles 6, 13, and 15 of the General Data Protection Regulation, and to inform the Applicants in writing about the lawful handling of the recordings made about them.

(8)

The request did not contain facts and evidence supporting the claims related to the alleged violation, as it did not substantiate the occurrence of the alleged violation; the Applicants merely stated in the notification that they had contacted the aforementioned economic entity performing property protection tasks on several occasions to receive answers to their questions, but they did not attach any documents to their request to support this.

(9)

In light of the above, the Authority, in its ruling NAIH/2020/8044/2, called on the Applicants to remedy the deficiencies and requested them to prove that they had contacted Applicant1 and requested information about the handling of their personal data.

(10) The Applicants responded to the Authority's call for remedy on December 22, 2020, and submitted their letter sent to Applicant1 on July 16, 2020, in which they complained that the security guards employed by Applicant1 continuously attempted to prevent the Applicants from performing their work, and they objected that they were confronted violently while recording them with their own mobile phones; however, the Authority's position was that the letter did not contain a request from the affected

party. Additionally, the Applicants stated that they continuously requested information verbally from the persons employed by Applicant1 on-site.

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In support of this, they referred to the recordings visible on the CD attached to the application, which show security guards while they are recording videos with body cameras or mobile phones, as well as taking measures for the verification of access cards. In the recordings, it can be heard that the acting security guard instructs the driver to prove that he has arrived on order and to present his access card, while the driver sitting in the vehicle objects and refuses the verification of the access card, but no questions regarding the data processing conducted with the camera are raised in any of the attached recordings.

(11) The Authority informed the Applicant1 of the initiation of the procedure with its decision No. NAIH-3987-1/2021 dated February 26, 2021, and called upon them to provide information on the purpose and legal basis for which recordings are made on the Airport premises, as well as to provide information on the method of camera data processing and to demonstrate how the recordings were used concerning the Applicants.

(12) According to the statement of Applicant1 dated March 23, 2021, received by the Authority under No. NAIH-2987-3/2021, the security tasks for certain publicly accessible areas of the Airport are carried out by Applicant2 on behalf of Applicant1, together with the subcontractor [...] involved in the performance, of which Applicant1 is the consortium leader.

(13) In 2019, Applicant1 entered into a joint data controller agreement with Applicant2 and Applicant3 regarding data processing related to the security tasks in designated areas of the Airport, for the purpose of detecting violations by third parties, interrupting and proving the infringement through the application of an electronic surveillance system (body camera).

(14) In its statement, Applicant1 outlined its position justifying the use of body cameras, according to which Applicant1, commissioned by Applicant2, makes image and sound recordings for the purpose of proving violations of the Act on the Police (1994, XXXIV) and the commission of a crime or offense, as well as the subsequent proof of the actions of the security guards. According to Applicant1, the purpose of making the recordings is to interrupt acts that violate or threaten the business and economic interests of Applicant2, harm its property, as well as acts against human life, physical integrity, and personal freedom, to provide subsequent proof of violations, and to prove the legality of security guard actions.

(15) According to Applicant1, during the public safety protection of the Airport, it often initiates proceedings with the transportation authority regarding official tasks related to the issuance of activity permits for taxi services due to unsolicited, often violent passenger acquisitions conducted without the permission of Applicant2, as it claims that this activity is primarily faced by the security and property guards employed by Applicant1.

(16) [...] The purpose of using body cameras and the related data processing is, on the one hand, to interrupt and subsequently prove violations against human life, physical integrity, and personal freedom that harm or threaten the business interests of Applicant2, and on the other hand, to verify the legality of the actions of the security guards.

(17) Applicant1 further stated that image and sound recordings are made of the individuals subject to the measures. The security guards activate the body camera simultaneously with the commencement of the action related to the critical event and make uninterrupted recordings of the event and the action. The recordings are made with a body camera fixed on the uniform of the security guards. Exceptionally, such recordings are also made using a mobile phone simultaneously with the use of the body camera.

(18) According to point 4.2.1 of Section II of Applicant1's statement No. NAIH-2987-3/2021, access to the files recorded with the body camera is granted exclusively to the authorized representative of Applicant2 (CEO, data controller business unit director, head of the monitoring group), while decisions regarding the use or deletion of the recordings stored on the central server are made jointly by the Applicants. According to Applicant1, the recordings will be viewed if the Applicants decide to initiate an official procedure regarding a case.

(19) According to point 2.2 of the attached joint data controller agreement, the purposes of data

processing were jointly determined by the Applicants after Applicant1 commissioned Applicant2 to ensure the security of the Airport and the Order of the Airport.

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(20) According to the agreement on joint data processing, the body cameras are the property of the Respondent2 and are handed over to the security guards employed by Respondent2 and Respondent1, who are involved in the execution, and they will place them on their clothing. The use of mobile phones is not mentioned in the document.

(21) Respondent1 states that the use of mobile phones is necessary when multiple offenders are confronted simultaneously, as the number of body cameras is limited; thus, this solution serves to eliminate unforeseen technical gaps. According to Respondent1, the recordings are deleted by the security guards at the end of their shift under the supervision of their service superior. To date, all recordings made on service mobile phones have been deleted by the security guards, as there has been no need for their use.

(22) In the vast majority of cases, Respondent1 further states that the security guards only simulate the use of body cameras and mobile phones due to their psychological effect, for preventive reasons. The use of the camera is at the discretion of the security guard, who assesses its necessity based on the circumstances of the case.

(23) According to Respondent1, the legal basis for data processing is, on the one hand, the implied consent of the data subjects, and in the absence of this, the legitimate interest of the Respondents. Respondent1 argues that this solution, which allows for the omission of the data subjects' consent, is necessary because a data subject entering the monitored area can refer to the lack of consent at any time, and may prohibit further use of the body camera, in which case the security guard would no longer be able to record without justifying the legitimate interest of the Respondents.

(24) To justify its legitimate interest, Respondent1 submitted the documents titled "Data Protection Impact Assessment Regarding the Use of Body Cameras" and "Balancing Test" dated May 6, 2019.

(25) According to these documents, the use of body cameras occurs only in exceptional, justified cases, particularly when the data subject repeatedly engages in actions requiring the initiation of official proceedings despite warnings from the security guard, for the purpose of recording such actions. The Balancing Test states that the ultimate goal of data processing is to interrupt and prove violations that harm or threaten the business and economic interests of Respondent2, as well as its assets. This goal, according to the Balancing Test, cannot be ensured by restructuring the work organization of private security companies, increasing personnel numbers, or training security personnel, nor by the coercive measures applicable against the offender as provided by Act CXXXIII of 2005 on the rules of personal and property protection and private investigation (hereinafter: Szvtv.), therefore the handling of image and sound recordings captured through the use of body cameras is justified. General experiences also confirm the preventive effect of the use of the equipment. [...]

(26) According to the "Proportionality Test" section III of the Balancing Test, the use of cameras specifically focuses on the individual concerned, thus the data processing does not affect the rights and freedoms of third parties. The use of body cameras is necessary only in exceptional justified cases, particularly for recording repeated violations of rules by the data subject despite warnings from the security guard, or for recording crimes or offenses committed by the person subject to the measure. The use of body cameras, according to the Balancing Test, serves not only the legitimate interest of Respondent2 operating the Airport but also a community interest, as public safety and the uninterrupted flow of passenger traffic are in the interest of society as a whole.

(27) Furthermore, the interest of the Respondents, according to point 20 of chapter III of the Balancing Test, takes precedence over the interests of the data subjects, as the business and economic interests of the Respondents also serve the safety of passenger and vehicle traffic, which indirectly contributes to the safety of the airport. Indeed, the interest in interrupting and proving violations against human life, physical integrity, and personal freedom, as well as proving the legality of the actions of security personnel, is considered primary against the claims of "taxi hyenas" regarding the protection of their personal data.

(28) According to the statement of Respondent1, the recordings will be viewed when the Respondents decide to initiate an official procedure and, considering all the circumstances of the case, they suspect

that the use of the image and sound material recorded by the body camera is essential for proving the violation, or that the use of the recording is evidently necessary to verify the legality of the action taken by the security guard accused of overstepping.

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(29) In relation to the data processing contested by the Applicants, the Respondent1 stated that the individuals entered the area of the Airport open to the public for the purpose of providing taxi services – repeatedly, despite the posted prohibition sign. According to Respondent1, the Applicants consented to the processing of their personal data by their conduct upon entering the protected area; moreover, the Respondents could also continue the data processing based on their legitimate interest, regardless of the existence of the individuals' consent.

(30) According to Respondent1's statement, the use of body cameras was considered in the case of the Applicants because, despite warnings from the security guards, they repeatedly attempted to provide unauthorized taxi services on the Airport premises.

(31) The recordings made regarding the Applicants were forwarded by Respondent1 to the [...] (hereinafter: Zrt.), which performs regulatory tasks related to taxi services, as well as to the Budapest Capital Government Office's Department of Public Transport Supervision, which carries out regulatory tasks related to the issuance of activity licenses for taxi service providers, and these recordings were used as evidence in the proceedings of these authorities.

(32) Respondent1 submitted to Zrt. the reports made against the Applicants, in which the violations were substantiated with video recordings made for this purpose. According to Respondent1, Zrt. used the recordings in its proceedings, which is corroborated by the fact that in the traffic organization position recorded in case number 1060/73-8/2020, it was noted that "during the viewing of the video recordings, we observed that a handwritten 'FREE' sign was visible in the right rear window of the Vehicle." According to the documents numbered 1060/73-10/2020, 1060/74-12/2020, and 1060/174-7/2020 submitted by Respondent1, Zrt. proposed the revocation of the Applicants' taxi stand usage permission based on the reports made by Respondent.

(33) Regarding the information provided to the individuals, Respondent1 stated that the security guards warn the individuals about the image and sound recording before turning on the camera; moreover, the security guards recording the footage prominently display a pictogram on their uniforms, and there are also signs posted in clearly visible places in the protected public area indicating that "the security guard is authorized to use a body camera to interrupt and prove the violation."

(34) Respondent1 sent the Authority the document titled "Information on Body Camera Data Processing" (hereinafter: Information) in Hungarian and English, and also sent photographs of the locations where the Information was posted (passenger waiting area, meeting point).

(35) According to the attached Information, the security guards performing security tasks act in accordance with the provisions set forth in the Szvtv. (Act on Security Services), and if they detect a violation, they may use a body camera during their actions if justified. The Information contains details regarding data processing, the Respondents, and the exercise of the rights of the individuals concerned.

(36) Respondent1 also attached the internal document titled "Guide for Security Guards on Duty at the Airport," the second chapter of which records information related to the use of body cameras.

(37) Following this, the Authority granted party status in the proceedings to Respondent2 with its document NAIH-1785-2/2022 and to Respondent3 with its document NAIH-1785-3/2022, and called upon them to provide statements.

(38) Respondent2 responded to the Authority on February 17, 2022, stating that it does not participate in the practical implementation of data processing, does not give instructions regarding the direct use of the body camera – particularly concerning the on-site actions and information provided by the security guards, as well as the actual data recording – and has no direct influence on it, nor does it have access to the data collected in this manner.

(39) Respondent2 further explained that the individuals receive appropriate information about the data processing associated with the use of body cameras from documents placed in designated locations within the Airport terminal, as well as from warning signs posted in the Airport's public private area. Additionally, the Airport Handbook Volume II, Chapter XIV, published on Respondent2's website and

accessible to everyone, provides detailed information about the [...] group's data processing activities, including specific information related to the use of body cameras. According to Respondent2's position, the individual affected by the recording can decide at any time to refrain from continuing the behavior for which the use of the camera was anticipated; however, if the individual continues the contested activity, then...

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clearly states that the individuals consent to the recording. For all these reasons, the Respondent2 asserts that the information provided to the affected parties is in accordance with the provisions of the Szvtv.

(40) On February 22, 2022, Respondent3 made a statement indicating that the use of body cameras by security personnel is justified in cases where there is a repeated violation of rules by the affected individual despite warnings from the security personnel, or for the purpose of recording an offense or violation committed by the individual subject to intervention. The circumstances justifying the use of the camera, the location and time of the recording, the name of the security personnel operating the camera, as well as the purpose, legal basis, justification, and necessity of the camera use must be communicated, and following a warning about the image and sound recording, the recording can take place simultaneously with the commencement of the intervention.

(41) Respondent3 confirmed the statements made by Respondent1 on March 23, 2021, and agreed with Respondent1's position that the information provided to the affected parties complies with Section 28 (2) of the Szvtv., as numerous pictograms and other informational materials draw attention to the possibility of camera use. The information is available at locations designated by the Respondents and is also recorded on warning signs in the public private areas of the Airport, stating that "In case of repeated violations of the behavioral rules written in the Order of the Airport despite warnings, or in case of detection of a crime or offense – for the purpose of interrupting and proving the violation – the Security Service may also use body cameras to record images and sounds!"

(42) Regarding the legal basis for data processing, Respondent3 stated that although the Respondents believe that the data processing through the use of body cameras is also legally based on the prior consent of the affected parties based on their indicative behavior, they ultimately consider the legal basis for data processing to be the legitimate interest of the Respondents in light of the GDPR (42) preamble, as consent cannot be considered voluntary if the affected party does not have a real or free choice and cannot refuse or withdraw consent without it being to their detriment.

(43) Respondent3 drew the Authority's attention to the fact that only passengers, companions, tourists, and licensed entrepreneurs who enter the Airport area lawfully and use it for its intended purpose may genuinely have their consent to data processing not considered voluntary, as they do not have a real or free choice regarding the recordings made during the use of airport services and cannot refuse or withdraw consent without it being to their detriment. However, the Applicants – as taxi service providers – are in a different situation according to Respondent3, as they can decide whether to enter the Airport area or not, and if they do not, they do not suffer any disadvantage due to this decision.

(44) According to Respondent3's statement, it is necessary to prove to the authorities that a violation has occurred, its nature, thus in most cases, that they are entering the Airport area for business purposes without having a pre-ordered ride reservation, leaving the vehicle in a designated area for ordered taxis while displaying a free taxi sign, and attempting to solicit passengers through calls or indicative behavior, or transporting passengers. These actions violate the provisions of the municipal regulation 31/2013. (IV.18.) of the General Assembly of Budapest regarding the conditions for providing passenger transport services by taxi and the operation of services that mediate and organize taxi services, specifically points c) and g) of Section 1, as well as the provisions of Government Decree 76/2015. (VII. 7.) regarding road passenger transport for a fee, specifically Section 21 (3), for which photographic evidence is not sufficient; in the absence of a recording that also captures sound, the affected party could falsely claim in defense that they arrived at the Airport area upon request.

(45) The Authority informed Respondent1 with document number NAIH-1785-4/2022 that it granted party status to Respondent2 and Respondent3, and called for a statement to clarify the facts.

According to the return receipt received by the Authority, Respondent1 received the decision on February 1, 2022, but did not respond, therefore the Authority, with decision number

NAIH-1012-2/2023, again requested a statement.

(46) In response to the Authority's repeated call, Respondent1 replied on March 24, 2023, stating that in their opinion, the consent of the affected parties complies with Article 4 of the General Data Protection Regulation.

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definition and the requirement set forth in Article 7 (1), as the operation of the cameras is clearly and understandably communicated to those entering the airport through the pictograms and textual inscriptions placed at the airport.

(47) According to the Applicant1, the information provided to the affected parties is also in accordance with Section 28 (2) of the Act on the Protection of Private Data, which states that in the case of protecting publicly accessible private property, the security guard is obliged to place a warning sign or notice in a clearly visible and readable manner, in a way that facilitates the orientation of third parties wishing to enter the area.

(48) The Applicant1 further stated that it only records images and sounds of unlawful acts. A violation is considered to be the breach of the rules regarding the use of the special taxi stand, such as arriving at the Airport with a free signal. To establish the violation, it is necessary to ensure that the arriving taxi has transported a passenger to the Airport in an authorized manner or provides a taxi service called on request. If the taxi does not enter with a passenger or does not enter on request, it is necessary to document the fact, circumstances, as well as the call to refrain from unlawful behavior and the subsequent statements and actions, which, according to the Applicant, cannot be sufficiently evidenced by simple photographs, but rather requires the recording of images and sounds.

(49) According to Applicant1, the recording of images and sounds is essential to prove the legality of the actions of the security guards, as those providing illegal taxi services continuously provoke the guards and file criminal complaints against them in the hope that the guards will refrain from taking action against them in the future. Consequently, the recordings are absolutely necessary for the protection of the guards, to demonstrate the proportionality of the action.

II. Applicable Legal Provisions

(50) According to Article 4 (1) of the General Data Protection Regulation, "personal data" means any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, number, location data, online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

(51) According to Article 4 (11) of the General Data Protection Regulation, "the data subject's consent" means any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which the data subject signifies agreement to the processing of personal data relating to them, either by a statement or by a clear affirmative action.

(52) According to Article 5 (1) of the General Data Protection Regulation, personal data must be:

- a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ("lawfulness, fairness, and transparency");
- b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest, scientific and historical research purposes, or statistical purposes shall not be considered incompatible with the original purposes in accordance with Article 89 (1) ("purpose limitation");
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization");
- d) accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate are erased or rectified without delay ("accuracy");
- e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed; personal data may be stored for longer periods only if the personal data are processed for archiving purposes in the public interest, scientific and historical research purposes, or statistical purposes, taking into account the implementation of appropriate technical and organizational measures as required by this Regulation to protect the rights

and freedoms of data subjects ("storage limitation");

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f) The processing must be carried out in such a way that the appropriate technical or organizational measures are applied to ensure the adequate security of personal data, including protection against unauthorized or unlawful processing, accidental loss, destruction, or damage ("integrity and confidentiality").

(53) According to paragraph (2), the data controller is responsible for compliance with paragraph (1) and must be able to demonstrate such compliance ("accountability").

(54) Under Article 6(1) of the General Data Protection Regulation, the processing of personal data is lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party, or for taking steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular if the data subject is a child.

The first subparagraph point f) does not apply to the processing of personal data by public authorities in the performance of their tasks.

(55) According to Article 7(1) of the General Data Protection Regulation, if the processing is based on consent, the data controller must be able to demonstrate that the data subject has consented to the processing of their personal data.

(56) Pursuant to Article 12(1) of the General Data Protection Regulation, the data controller shall take appropriate measures to provide the data subject with all information regarding the processing of personal data referred to in Articles 13 and 14, and all information referred to in Articles 15-22 and 34 in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, especially when providing information addressed to children. The information shall be provided in writing or by other means – including, where appropriate, by electronic means. Upon request of the data subject, oral information may also be provided, provided that the identity of the data subject is verified by other means.

(57) Articles 13(1)-(2) of the General Data Protection Regulation:

(1) Where personal data are collected from the data subject, the data controller shall provide the data subject with the following information:

- a) the identity and contact details of the data controller and, where applicable, of the data controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the intended processing and the legal basis for the processing;
- d) the categories of personal data concerned;
- e) the recipients or categories of recipients of the personal data, if any;
- f) where applicable, the fact that the data controller intends to transfer personal data to a third country or an international organization, and the existence or absence of an adequacy decision by the Commission, or in the case of transfers referred to in Article 46, Article 47, or the second subparagraph of Article 49(1), the reference to the appropriate and suitable safeguards and the means by which a copy of them can be obtained or the means by which they are made available.

(2) In addition to the information referred to in paragraph (1), the data controller shall provide the data subject with the following additional information necessary to ensure fair and transparent processing:

a) the retention period for personal data, or, if not possible, the criteria used to determine that period;
b) if the processing is based on point f) of Article 6(1), the legitimate interests pursued by the data controller or a third party;

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c) the data subject's right to request access to their personal data from the data controller, to have it rectified, deleted, or to restrict its processing, and to object to the processing of personal data, as well as the right to data portability;

d) the right to withdraw consent at any time in the case of processing based on point a) of paragraph (1) of Article 6 or point a) of paragraph (2) of Article 9, which does not affect the lawfulness of processing based on consent before its withdrawal;

e) the right to lodge a complaint with a supervisory authority;

f) the source of personal data and, where applicable, whether the data originates from publicly accessible sources; and

g) the fact of automated decision-making referred to in paragraphs (1) and (4) of Article 22, including profiling, as well as understandable information on the logic involved and the significance of such processing for the data subject, as well as the expected consequences thereof.

(58) According to Section 10 (2) of Act V of 2006 on public company registration, court company proceedings, and liquidation (hereinafter: Ctv.), the existing and deleted data of the company register, as well as the company documents – including those submitted electronically and those converted into electronic documents – are fully public.

(59) According to Section 12 (2) of Act CXV of 2009 on individual entrepreneurs and individual companies, the authority maintaining the register is obliged to make the family and first names of individual entrepreneurs, as well as the data specified in Section 11 (1) points b)–h), the date of termination of eligibility for individual entrepreneurial activity – if it occurred due to the establishment of an individual company or a limited liability company under Section 19/C – and the family and first names of deleted individual entrepreneurs, along with their registration number, continuously accessible on the internet for anyone free of charge, indicating the fact of deletion.

(60) According to Section 21 (3) of the Government Decree, on the airport premises – if the facility operator has consented to such service – it is permitted to offer taxi services and pick up passengers at the taxi stand, without harassing the passenger and while maintaining public order.

(61) According to point c) of Section 1 of the Taxi Regulation, the taxi stand established on public land adjacent to the airport is classified as a special taxi stand.

(62) According to Section 10 of the Taxi Regulation, the contractual operator is entitled and obliged to monitor compliance with the regulations regarding the use of special taxi stands, and must notify Budapest Közút Zrt. and the transport organizer of any violations and the measures taken. According to Section 13 of the same regulation, anyone who violates the regulations concerning taxi services, as well as anyone who acts in violation of the provisions regarding road passenger transport for a fee on the operational area of the airport, may have their taxi stand usage permission revoked by Budapest Közút Zrt. within 5 working days following the receipt of a justified written notice from the transport organizer (with immediate termination of the taxi stand usage agreement).

(63) According to Section 60 (1) of the Infotv., in order to enforce the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may also initiate a data protection authority procedure ex officio.

(64) According to Section 60/A (1) of the Infotv., the deadline for processing in the data protection authority procedure is one hundred and fifty days, which does not include the time from the request for the provision of data necessary for clarifying the facts to its completion.

(65) According to point a) of Section 61 (1) of the Infotv., in its decision made in the data protection authority procedure, the Authority may apply the legal consequences defined in Section 2 (2) of the Infotv. in connection with the data processing operations.

(66) According to point b) of paragraph (2) of Article 58 of the General Data Protection Regulation, the supervisory authority, acting within its corrective powers, shall reprimand the data controller or the data processor if their data processing activities have violated the provisions of this regulation.

III. Decision

****III.1. The Identity of the Data Controllers****

(67) According to Article 4(1) of the General Data Protection Regulation, the image, likeness, or voice of a natural person constitutes personal data, and any operation performed on personal data, including the creation of photographs or recordings, is considered data processing.

(68) According to Article 4(7) of the General Data Protection Regulation, a natural or legal person, public authority, agency, or any other body that determines the purposes and means of processing personal data, either alone or jointly with others, is considered a data controller. If the purposes and means of processing are jointly determined by two or more organizations, they are considered joint data controllers.

(69) In the case of the data processing under review, the Applicants have entered into a joint data controller agreement. According to the submitted documents and statements, the purpose of the data processing is, on the one hand, to prevent behaviors that would harm the business and economic interests of the Applicant², who operates the Airport, as the client of Applicant³ and Applicant¹, and on the other hand, to record the actions of the security personnel to demonstrate their legality. Since the purposes and means of processing were jointly determined and decisions regarding the means were also made jointly, they are therefore considered joint data controllers.

****III.2. The Applicants and the Recordings Made of Them****

(70) According to Article 4(1) of the GDPR, any information relating to an identified or identifiable natural person qualifies as personal data. The Applicants are entrepreneurs providing passenger transport services, thus economic actors who enter a restricted area for the purpose of providing their services, and the contested recordings were made in connection with their activities. The entrepreneurs, including members of economic companies and sole proprietors, have certain personal data that, according to Section 3(6) of the Infotv., are considered public data in the public interest, but they still retain their quality as personal data beyond this aspect.

(71) The recordings made of the Applicants are not considered public data in the public interest under either the Eiectv. or the Ctv., but rather constitute personal data that relates not to the private sphere of the Applicants but to their economic and business activities.

(72) The creation of camera recordings using body cameras generally poses a greater risk to the right to the protection of the personal data of the individuals concerned than usual. The individuals are less likely to notice their use, and the recordings made with body cameras capture the subjects' gestures, voices, etc., more accurately from close range compared to traditional cameras. Consequently, the Authority examined the general practice of data processing conducted by the Applicants using body cameras in this case.

****III.2.1. The Purposes and Legality of Data Processing with Body Cameras****

(73) In their responses to the Authority, the Applicants outlined their position justifying the use of body cameras, stating that the recordings are made by Applicant¹, commissioned by Applicant², for the purpose of later proving the commission of a crime or offense, or the actions of the security personnel. According to the Applicants, the recordings are made to ensure the safe operation of the Airport, which is also in the business and economic interest of Applicant².

(74) The Applicants assert that the legal basis for the data processing is, on the one hand, the consent of the individuals concerned based on their implied behavior, and in the absence of such consent, the legitimate interest of the Applicants. The Applicants argue that this solution, which allows for the omission of the individuals' consent, is necessary because any individual entering the monitored area can at any time invoke the lack of their consent, and may prohibit further use of the body camera, in which case the security personnel would no longer be able to continue recording without demonstrating the legitimate interest of the Applicants.

(75) The possible legal bases for data processing are listed in Article 6(1) of the General Data

Protection Regulation. This list does not imply a hierarchy among the legal bases. Although the description of the legal bases begins with consent, emphasizing that data protection fundamentally relies on the information provided...

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The right to self-determination, which is based on the premise that everyone can manage their own personal data within the framework defined by law, does not, however, mean that consent is always the most appropriate legal basis.

(76) To refer to the legal basis of consent, three fundamental requirements must be met:

1) Consent must be based on appropriate information. The requirement for prior information to the data subject is detailed in Article 13 of the General Data Protection Regulation.

2) One of the most important components of the validity of consent is the voluntariness of the data subject's will, free from external influence.

3) The expression of the data subject's will must be made through a specific, clear, unequivocal act of declaration or confirmation.

(77) The voluntariness of consent is realized when the data subject has a genuine choice available to them. According to point 13 of the European Data Protection Board's guidelines 5/2020 on consent under Regulation (EU) 2013/679, "if the data subject has no genuine choice, feels compelled to give consent, or will face negative consequences if they do not give their consent, then the consent is not valid."

(78) Furthermore, according to Article 7(1) of the General Data Protection Regulation, if data processing is based on consent, the data controller must be able to demonstrate that the data subject has consented to the processing of their personal data. Even if the above three conditions are met, in the case of video surveillance, it is conceivable to refer to the legal basis of consent only in exceptional cases, considering that the data controller must be able to prove that all data subjects have consented to the processing of their personal data. Additionally, Article 17(1)(b) of the GDPR poses further difficulties, stating that the consent of the data subject can be withdrawn at any time, in which case the personal data concerning the data subject must be deleted without undue delay.

(79) Consent can only be an appropriate legal basis if the data controller genuinely ensures that data subjects can decide on the data processing, and it does not cause any disadvantage or negative consequence for the data controller if the data subject later withdraws their consent. If the data controller anticipates that they have an interest in the data processing that requires the data regardless of the data subject's consent, then consent is not an appropriate legal basis, provided that the legitimate interest of the data controller takes precedence over the interests or fundamental rights and freedoms of the data subjects that necessitate the protection of personal data.

(80) Before commencing data processing, the data controller must review which legal basis will be the best solution in relation to the execution of the specific activity. Data controllers must carefully consider which legal basis to apply to the specific data processing, as there is only an exceptional possibility to switch from one legal basis to another. For example, if the data controller processes a personal data based on the consent of the data subject, and the data subject withdraws their consent, then - as a rule - the data controller cannot apply the legitimate interests legal basis for further processing of the personal data, even if it could have been an appropriate legal basis at the time of the commencement of the data processing. In such cases, the data controller may exceptionally continue to process the personal data by applying the legitimate interests legal basis in the cases prescribed by the regulation.

(81) It is also necessary to point out regarding legal bases that a data processing can have only one legal basis. It is not acceptable for the data controller to assign different legal bases to the same data processing, as the simultaneous application of multiple legal bases violates the principles of transparency and fairness.

(82) In the case of data processing conducted with body cameras, consent is therefore not an appropriate legal basis, as the conditions for obtaining consent (e.g., voluntariness) are not met, or obtaining it is not realistic considering the nature of the data processing. In a case where the purpose of data processing is to record evidence for initiating various procedures or to prove an infringement, the legitimate interest of the data controller may be the appropriate legal basis.

2 GDPR Article 4(11): "the data subject's consent' means any freely given, specific, informed and unambiguous indication of the data subject's wishes, by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her."

3 https://edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_202005_consent_hu.pdf

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(83) The Applicant¹ submitted the documents titled "Data Protection Impact Assessment regarding the use of body cameras" and "Balancing Test" dated May 6, 2019, to substantiate the legitimate interest of the Respondents. According to the Balancing Test, the ultimate goal of data processing is to interrupt and prove violations that harm or threaten the business and economic interests of the Applicant², as well as damage to its assets. This goal, according to the Balancing Test, cannot be ensured by transforming the organizational structure of private security companies, increasing the number of personnel, training security guards, or by the coercive measures applicable against the violator as provided by Act CXXXIII of 2005 on the rules of personal and property protection and private investigation; therefore, the handling of images and sound recordings captured through the use of body cameras is justified.

(84) According to point 20 of Chapter III of the Balancing Test, data processing also serves the security of the Airport, and furthermore, "the interest of the Respondents, as well as the interruption and proof of violations against human life, physical integrity, and personal freedom, in addition to proving the legality of the actions of security guards, is considered primary in relation to the claims of 'taxi hyenas' regarding the protection of their personal data."

(85) Based on the responses of the Respondents, the Authority identified two purposes of data processing: 1. the primary purpose of data processing is to monitor and enforce compliance with the provisions related to the use of the special taxi station as stated in the operational agreement, and 2. the secondary purpose is to prove the legality of security guard actions. Since both purposes were indicated as the original objectives of the Respondents in the submitted documents, for the legitimate interest of the Respondents to be applicable, the legitimate interest must exist in relation to both independent purposes at the time of data processing.

(86) In the Authority's view, there is a legitimate interest concerning both of the above purposes at the time of recording violations of the regulations related to taxi services, both for the Respondents and for users of airport services, as well as, where applicable, for the general public interest.

(87) Since it can be expected that the affected individuals may file complaints against the security guard actions based on the reason and content of the recordings, this purpose is also considered acceptable.

(88) However, considering that the consent of the affected individuals is not an appropriate legal basis for data processing conducted with body cameras, the Authority determined that the Respondents unlawfully processed the personal data of the affected individuals, thereby violating Article 6(1) of the GDPR.

****III.2.2. The Application of Data Minimization in the Use of Image and Sound Recordings****

(89) The Authority has ex officio examined whether the use of image and sound recordings captured by body cameras is essential for proving violations.

(90) According to the principle of data minimization as set out in Article 5(1)(c) of the General Data Protection Regulation, the personal data processed must be adequate and relevant in relation to the purposes of the processing and must be limited to what is necessary.

(91) In light of the principle of data minimization, the data controller must first thoroughly examine whether the measure is suitable for achieving the intended purpose, and secondly, whether it is appropriate and necessary for the goals to be achieved. Before deploying a camera system, it must also be assessed where and when video surveillance measures are absolutely necessary, and whether there are equally effective protective measures that infringe less on the rights of the individuals concerned in order to achieve the specified goals.

(92) According to the Respondents, the use of body cameras occurs "only exceptionally, in justified cases, particularly in the event of repeated actions by the individual requiring the initiation of official proceedings despite warnings from the security guard, for the purpose of recording." [...] Furthermore,

Respondent1 states that general experiences also confirm the preventive effect of the use of the device.

(93) According to the documents submitted by Respondent1, several reports were initiated based on the recordings. In case number 1060/73-8/2020, for example, the company used the recordings made by Respondent1 and established that the video recording corroborated the claims made in Respondent's report. In this case, the company based its decision on the video recording submitted by Respondent, as it was visible in the recording that a handmade "FREE" sign was located in the window of one of the applicants' vehicles.

(94) Consequently, the Authority accepts Respondent1's argument that the creation of image recordings may be essential for proving violations.

(95) Regarding the creation of sound recordings, the Authority specifically examined the necessity of sound recording and considers it acceptable based on the submitted recordings that it can be proven through sound recordings what was said by the security guards during the measure, including what they instructed the individuals subject to the measure and what responses they received. All of this contributes to certifying the legality of the measure.

(96) Considering that, according to the statements, body cameras are only activated under certain conditions, meaning that image and sound recording does not occur continuously, and that the cameras focus on the violation and the perpetrator, the data processing does not involve the extensive collection of personal data beyond what is necessary.

****III.2.3. Information Provided to Data Subjects Regarding Body Camera Use****

(97) The Applicants objected in their application that they did not receive adequate information about the operation of the camera system and the data processing that takes place as a result.

(98) In the case of data processing carried out via a camera system, the Data Controllers collect personal data from the data subjects, therefore they must comply with the information obligation under Article 13 of the GDPR.

(99) Consequently, the Authority examined whether the Respondents fulfilled their information obligation towards the Applicants regarding body camera use as stipulated in Article 13 of the GDPR.

(100) In this regard, the Authority reviewed the content of the Information provided by the Data Controllers.

(101) If Article 13 of the GDPR is applicable, the information referred to in Article 13(1) must be made available "at the time of obtaining the personal data." Therefore, the information must be displayed in such a way that the data subjects can easily recognize the circumstances of the surveillance before entering the monitored area.

(102) Given the amount of information to be communicated to the data subjects, the data controller may also divide the information into several levels or stages.

(103) In the context of preliminary information, the data controller must strive to provide the data subject with as complete and comprehensive a picture as possible of the processing of their personal data, as this is the only way for the data subject to assess how a particular data processing operation affects their privacy. In the case of camera surveillance, the preliminary information should be provided as a first step already upon entering the monitored area.

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It is necessary to ensure this at the time of entry. At this point, a brief notification provided via a pictogram placed outside the monitored area (at the entrance door or gate) is required and sufficient, which must simultaneously be supplemented as a second step by a complete (longer and detailed) notification that is at least accessible on-site.

(104) The first brief notification, i.e., the pictogram, should generally contain the most important information about data processing, such as details regarding the purposes of data processing, the identity of the data controller, and the existence of the rights of the data subjects. Additionally, it should refer to the more detailed, second-level information and indicate where and how it can be accessed.

(105) Information about the availability of this latter notification must therefore be provided on the posted "pictogram" (one of its functions is precisely this: to warn of unavoidable data processing upon entering the area and to refer to the possibility and accessibility of the necessary comprehensive

information), and this notification must be made available upon request by the data subject. The second-level notification must already contain all mandatory information regarding data processing as stipulated in Articles 13(1)-(2) of the General Data Protection Regulation.

(106) According to the Respondent1, a pictogram indicating camera data processing has been placed on the uniforms of the security guards who are recording, and in addition, there is information in the posted Notifications in clearly visible locations in the protected public area stating that the security guard is also entitled to use a body camera for the purpose of interrupting and proving a violation. These Notifications are located inside the Airport building based on the attached photographs.

(107) Furthermore, Respondent1 stated that the security guards warn the data subjects before turning on the camera regarding image and sound recording.

(108) Since the Applicants arrived at the Airport area by vehicle, they could not receive information about data processing conducted with the body camera before entering, as the Notifications are posted inside the Airport building.

(109) Considering that the data subjects enter the Airport area by vehicle for the purpose of providing taxi services, the requirement for prior notification before the commencement of data processing would be fulfilled if the information regarding camera surveillance were provided not within the internal area of the Airport but at the point of entry (e.g., at the barrier or another location) where the data subjects could slow down and adequately perceive the first-level information regarding camera surveillance. A warning referring to data processing conducted with a body camera must also be placed on the security guards' clothing, and there should also be a reference to the availability of the detailed Notification.

(110) Based on all of the above, the Authority found that the information provided by the Respondents did not comply with Article 12(1) of the General Data Protection Regulation, as the requirement that data subjects receive information about data processing conducted with a body camera before entering the Airport was not met.

****III.4. Violation of the Applicants' Right of Access****

(111) According to Article 26(1) of the General Data Protection Regulation, joint data controllers must transparently determine in their agreement the distribution of responsibilities regarding the fulfillment of obligations under the GDPR, particularly concerning the exercise of the rights of data subjects and the provision of information mentioned in Articles 13 and 14, except in cases where and to the extent that the distribution of liability concerning data controllers is determined by applicable EU or Member State law.

(112) The Respondents agreed in points 4.13. and 4.14. of their joint data controller agreement that they are individually obliged to fulfill the exercise of the rights of data subjects in accordance with the relevant legal provisions regarding requests received from the data subjects, and each data controller is individually responsible for its own data provision. Consequently, Respondent1 is independently responsible for responding to data subject requests based on the General Data Protection Regulation and points 4.13. and 4.14. of the joint data controller agreement.

(113) According to the Applicants' request, they contacted Respondent1 multiple times to request information regarding the processing of their personal data, to which they received no response.

(114) In their supplementary submission, the Applicants attached their letter dated July 16, 2020, to prove that they requested information from Respondent1 regarding the processing of their personal data, and they stated that the Applicants verbally requested information on-site.

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They requested continuous information from the persons employed by the Respondent1. In support of this, they referred to the recordings visible on the CD attached to the request.

(115) The Authority examined the document submitted by the Applicants and found that it did not contain a request for access under Article 15 of the General Data Protection Regulation, nor any evidence to support the alleged infringement. The attached video recordings demonstrated that the security guards were recording with a camera, but did not prove that the Applicants requested information regarding their personal data.

(116) Since no evidence emerged during the proceedings that the Applicants submitted a request

under Article 15(1) of the General Data Protection Regulation to Respondent¹, the Authority rejected the Applicants' request in this regard.

IV. Exceeding the Administrative Deadline

(117) The Authority exceeded the one hundred and fifty-day administrative deadline set forth in Section 60/A(1) of the Infotv. during the proceedings; therefore, based on Section 51(b) of the Ákr., the Applicants are entitled to ten thousand forints, to be paid by bank transfer or postal order, as indicated in writing.

V. Other Issues

(118) According to Section 38(2) of the Infotv., the Authority's task is to monitor and promote the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly accessible data, and to facilitate the free flow of personal data within the European Union. According to Section 38(2a) of the Infotv., the tasks and powers assigned to the supervisory authority in the General Data Protection Regulation are exercised by the Authority in accordance with the provisions set forth in the General Data Protection Regulation and this law concerning entities under the jurisdiction of Hungary.

(119) The Authority's jurisdiction extends to the entire territory of Hungary.

(120) Based on Section 112(1) and Section 116(1) of the Ákr., as well as Section 114(1), there is a right to legal remedy against the decision through administrative litigation.

(121) The rules of administrative litigation are determined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12(1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13(3)(a)aa of the Kp., the Metropolitan Court is exclusively competent for the case.

(122) According to Section 27(1) of the Kp., legal representation is mandatory in administrative litigation before the court. According to Section 39(6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(123) According to Section 29(1) of the Kp. and in consideration of this, the E-Administration Act 2016 CXXX. Section 604 applies, and according to Section 9(1)(b) of this Act, the client's legal representative is obliged to maintain electronic communication.

(124) The time and place for submitting the statement of claim are determined by Section 39(1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77(1)-(2) of the Kp.

(125) The amount of the administrative litigation fee is determined by Section 45/A(1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The initiating party is exempt from the prior payment of the fee under Section 59(1) and Section 62(1)(h) of the Itv.

Dated: Budapest, according to the electronic signature.

Dr. habil. Attila Péterfalvi
President, Professor Emeritus